

M/S Ekdil Mini Floor Mill v. The Executive Engineer

High Court of Judicature at Allahabad · Division Bench · 25 February 2011 · Writ-C No. 8039 of 2011 · **Writ disposed; billing dispute relegated to CGRF and Ombudsman under para 7.10.**

HEADNOTE

A consumer dissatisfied with a modified electricity demand after a representation decided under earlier writ and contempt directions must pursue the Consumer Grievance Redressal Forum and then the Ombudsman under para 7.10 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ with a direction that any CGRF complaint be decided expeditiously.

FACTUAL SUMMARY

The petitioner mill had earlier approached the High Court complaining of an incorrect electricity bill and the licensee's failure to adjust amounts already deposited. Pursuant to those directions and later contempt proceedings, the respondents decided the representation on 5.10.2010, corrected the bill, and raised a modified demand of Rs.1,71,121. Still dissatisfied with that demand, the mill and another filed this writ against the Executive Engineer and others.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman as alternative remedy for billing grievances

HOLDING

Where a consumer remains dissatisfied with a modified electricity demand after a representation decided pursuant to earlier court and contempt directions, the alternative remedies of the Consumer Grievance Redressal Forum and thereafter the Ombudsman under para 7.10 of the U.P. Electricity Supply Code are to be pursued; the writ is disposed with a direction that a CGRF complaint, if preferred, be decided expeditiously. ¶ 4-5

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A post-representation modified demand of Rs.1,71,121 was held to belong in CGRF and then the Ombudsman under para 7.10, not in a further writ. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE MODIFIED DEMAND OF RS.1,71,121 RAISED AFTER THE 5.10.2010 REPRESENTATION ORDER

Left to CGRF and Ombudsman under para 7.10. ¶ 3-5